

But, as the cases show, the courts to a large degree will follow the dictate of the executive branch. Whether it is at all likely that this practice will be changed will depend to a large extent upon a different approach to the subject of sovereign immunities. Where the sovereign activity is clearly within the classical category, the court will of its own accord recognize and grant the immunity. The suggestion of the State Department is unnecessary, and if presented will be recognized. However, if the activity is carried on by a State-owned entity, it is submitted, the court should take jurisdiction because the creation of the entity is to be considered an expression of the intent of the State to consider the entity separate from itself; it is thus merely another legal personality. Diplomatic intervention in such cases places upon the judiciary a burden, whether it is moral or political, which it should not bear. If after the court has made its determination, the case has sufficient significance for diplomatic intervention, it should be treated on diplomatic levels and not in derogation of legal rights enforceable in a court. The executive branch should not determine judicial questions.¹³⁸

¹³⁸ Jessup, *Has The Supreme Court Abdicated One Of Its Functions?*, 40 *Am. J. Int'l L.* 168 (1946); Kuhn, *The Extension of Sovereign Immunity to Government-Owned Commercial Corporations*, 39 *Am. J. Int'l L.* 774 (1945).